

SENATE No. 668

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act creating the commercial fisheries offshore wind mitigation fund.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/22/2025</i>

SENATE No. 668

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 668) of Bruce E. Tarr for legislation to create the commercial fisheries offshore wind mitigation fund. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 587 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act creating the commercial fisheries offshore wind mitigation fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 10 of the general laws as appearing in the 2022 official edition is hereby
2 amended by inserting after section 35PPP the following new section:-“Section 35QQQ

3 (a) There is hereby established and set up on the books of the commonwealth a
4 separate fund to be known as the Commercial Fisheries Offshore Wind Mitigation. The purpose
5 of this fund shall be to maintain seafood industry resiliency and expand opportunity by
6 developing new fisheries; enhancing existing fisheries; introducing new and efficient
7 technologies; and modernizing physical infrastructure to ensure the seafood industry’s
8 competitiveness in a global marketplace, all of which will upgrade energy efficiency, lower
9 carbon footprints, and improve operational efficiencies. The fund shall consist of: (i) any
10 revenues or other financing sources directed to the fund by appropriation; (ii) bond revenues or

11 other monies authorized by the general court and specifically designated to be credited to the
12 fund; (iii) any income derived from the investment of amounts credited to the fund or repayment
13 of loans from the fund; (iv) funds from public and private sources including, but not limited to
14 gifts, federal or private grants, donations, rebates and settlements received by the commonwealth
15 that are specifically designated to be credited to the fund; and (v) all other amounts credited or
16 transferred into the fund from any other source. The executive office of energy and
17 environmental affairs shall seek to maximize fund revenues through federal monies, matching
18 funds and grants. The fund shall be administrated by the commissioner of fish and game in
19 consultation with the commercial fisheries commission established by section 79 of chapter 179
20 of the acts of 2022. Any unexpended balances in the fund at the end of the fiscal year shall not
21 revert back to the General Fund and shall be available for expenditures in the subsequent fiscal
22 year.

23 (b) Annually, not later than December 1, the commissioner of fish and game shall
24 report on the activities of the fund to the clerks of the house of representatives and the senate and
25 to the house and senate committees on ways and means. The report shall include an accounting
26 of expenditures made from the fund with a description of the authorized purpose of each
27 expenditure, an accounting of amounts credited to the fund and any unexpended balance
28 remaining in the fund